

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

between the parties is not required to state a cause of action for accounting. All that is required is that some relationship exists that requires an accounting.” (*Ibid.*)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state an accounting cause of action. (Fam. Code, §§ 712, 1101.) Accordingly, the demurrer is overruled as to the sixth cause of action.

In sum, the demurrer is overruled as to the first through fourth and sixth causes of action and sustained with leave to amend as to the fifth cause of action. The complaint is also not uncertain and overruled on those grounds. Plaintiffs shall file and serve an amended complaint on or before **August 3, 2026**.

8. S-CV-0056771 HAMMICK, JAMES v. VERNON, JEFFREY

The motion to set aside default is dropped from calendar as no moving papers were filed with the court.

9. S-CV-0056860 ELLIOT, LISA v. VOP SIERRA RIDGE

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3**.

Defendants’ Demurrer to Complaint

Defendants demurs to plaintiffs’ complaint on the grounds the complaint does not allege facts sufficient to state the first cause of action and the third and fourth causes of action are duplicative. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

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First Cause of Action—Elder Abuse by Neglect

Abuse against an elder or dependent adult includes, among others, “neglect.” (Welf. & Inst. Code, § 15610.07, subd. (a)(3).) Elder means any California resident 65 years of age or older. (*Id.* at § 15610.27.)

Neglect is defined as either “(1) The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise [or] (2) The negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise.” (Welf. & Inst. Code, § 15610.57, subds. (a)(1)–(2).) This includes, but is not limited to:

- (1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter.
- (2) Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole reason that the person voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment.
- (3) Failure to protect from health and safety hazards.
- (4) Failure to prevent malnutrition or dehydration.
- (5) Substantial inability or failure of an elder or dependent adult to manage their own finances.
- (6) Failure of an elder or dependent adult to satisfy any of the needs specified in paragraphs (1) to (5), inclusive, for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health.

(*Id.* at subds. (b)(1)–(6).)

Importantly, neglect refers “not of the undertaking of medical services, but of the failure to provide medical care.” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 404.) Also, the act does not provide liability for simple or gross negligence by health care providers. (Welf. & Inst. Code § 15657.2; *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 88.) Instead, plaintiff must plead, and courts must address, four factors to determine whether defendants’ conduct constitutes neglect. (*Id.* at 406–07.) Specifically, “plaintiff must allege . . . facts establishing that defendant . . . (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the

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plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) . . . [and 4] the neglect caused the elder or dependent adult to suffer physical harm, pain or mental” (*Ibid.* [internal citations omitted].)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state the first cause of action for elder abuse by neglect. Accordingly, the demurrer is overruled as to the first cause of action.

Third and Fourth Causes of Action—Wrongful Death (Negligence) and
Wrongful Death (Elder Abuse and Neglect)

Defendants next demur to the third and fourth causes of action on the grounds they are duplicative of each other. However, the causes of action are not duplicative but instead alternative theories of liability. Accordingly, the demurrer is overruled as to the third and fourth causes of action.

In sum, the demurrer is overruled in its entirety.

Defendants’ Motion to Strike Complaint

Defendants move to strike the following from plaintiffs’ complaint on the grounds the complaint does not allege a basis for such relief:

1. Page 37, lines 20–23 (paragraph 129)
 2. Page 39, lines 19–28 and page 40, lines 1–10 (fourth cause of action in its entirety)
 3. Page 40, line 15 (attorney’s fees)
 4. Page 40, lines 16–17 (exemplary and punitive damages)
 5. Page 41, line 1–4, (fourth cause of action in its entirety)
- (Code Civ. Proc., §§ 435, 436.)

Punitive damages are available “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a); Welf. & Inst. Code, § 15657, subd. (c).) Malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Id. at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Id. at § 3294, subd. (c)(2).)

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Corporate employers can be held liable for punitive damages based on the acts of the employee when “the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Id. at § 3294, subd. (b).)

On the other hand, attorneys’ fees and costs are recoverable “[w]here it is proven by clear and convincing evidence that a defendant is liable for . . . neglect as defined in Section 15610.57 . . . and that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse. . . .” (Welf. & Inst. Code, § 15657.)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state allegations for malicious, oppressive, intentional, and reckless conduct on behalf of defendants and prayers for attorney’s fees and exemplary and punitive damages. Moreover, plaintiffs allege facts sufficient to state the fourth cause of action for wrongful death as an alternatively pleaded theory of recovery.

Accordingly, defendants’ motion to strike is denied in its entirety. Defendants shall file and serve an answer on or before **August 3, 2026**.